

Delegated Emergency Authority as Bounded Executive Action: A Formal Grammar for Time-Limited Constitutional Amendments

Anonymous for external review*

Abstract

Delegated emergency authority has, across two thousand years of constitutional practice, exhibited a consistent failure mode: an authority granted as a time-bounded exception ratchets, through use and reuse, into a permanent feature of the legal order. The pattern recurs in regimes that have very little in common doctrinally. Article 48 of the Weimar Constitution was an emergency-decree authority intended for narrowly delimited use; it was used 250 times in twelve years before being absorbed into the structure of the Nazi state. The Authorization for Use of Military Force enacted in September 2001 has, twenty-five years later, been cited as legal basis for armed action in at least eight countries. Statutory takedown regimes under Section 230 of the Communications Decency Act and Article 17 of the General Data Protection Regulation produce orders that are, in form, time-bounded executive acts; in practice the orders are irreversible by construction because no rollback path is statutorily required. The Foreign Intelligence Surveillance Act's emergency authorities have been documented, in declassified Foreign Intelligence Surveillance Court opinions and Privacy and Civil Liberties Oversight Board reports, to operate at a boundary of judicial review that the original statute did not contemplate.

This Article argues that the ratcheting pattern has a structural rather than merely political explanation. Each of these regimes shares a missing element at the level of statutory grammar: the authority is granted without a typed rollback obligation that must be constructed at the moment of authorization. A typed rollback witness is a formal-methods construct, drawn from recent work in proof-carrying programmable governance. It is the requirement that an authority cannot be exercised unless, at the moment of its exercise, the actor exhibits a proof that the path back to the prior state is constructible. The grammar makes the corresponding class of unbounded emergency authority *unconstructible* in the well-typed sense rather than only forbidden. The distinction matters because forbidden authority can be exercised against the prohibition; unconstructible authority cannot be exercised because the construction itself fails to type-check.

The Article develops the grammar against five case studies, situates it within the Schmitt-Agamben tradition on the state of exception, and exhibits one implementation drawn from a Lean-attestable governance substrate. The implementation is given as proof that the grammar is buildable, not as the centerpiece of the argument. The Article is structural; it does not defend any particular emergency authority on the merits. It argues that, where the structural grammar is available, its absence in current statutory practice is a defect for which the formal substrate provides a corrective.

*Draft circulating for legal-academy review. The substrate cited in Section 5 is developed at length in a companion technical paper. Comments on the legal claims, particularly the case-study selection in Section 3, are welcomed at the address provided to the editors.

I. Introduction

A familiar shape recurs across the history of delegated emergency authority. A legislature, faced with a circumstance it characterizes as exceptional, grants an executive officer a power that was not previously available within the ordinary structure of the legal order. The grant is framed as time-bounded. The authority is to be used only while the exceptional circumstance persists, and is to lapse, by its own terms, once the circumstance abates. The grant is sometimes accompanied by a sunset provision, sometimes by a periodic reauthorization requirement, sometimes by reporting obligations to a legislative committee, and sometimes by judicial review of the executive's exercise of the granted authority. In each case, the structural intuition motivating the grant is that the authority is borrowed, not given outright; that it must return to the legislature when the exception ends; and that the legal order will resume its ordinary shape thereafter.

The structural intuition is, with regularity that does not appear to be coincidental, falsified. Article 48 of the Weimar Constitution authorized the Reich President to take "the necessary measures" to restore public security in cases where it was "substantially disturbed or endangered" [?]. The article required notification to the Reichstag and permitted the Reichstag to demand the suspension of any measure taken under it. In its first twelve years of operation, the authority was invoked approximately 250 times [?]. By the time of the Reichstag Fire Decree in February 1933, the authority had become a routine instrument of governance rather than the exceptional remedy the constitutional text described [?]. The transition from emergency power to instrument of dictatorship occurred along a continuous trajectory. There was no single moment at which the authority's character changed. There was, instead, a sequence of admissions, each of which appeared, at the time of its admission, to be a defensible exercise of a power constitutionally available to its holder.

The Authorization for Use of Military Force enacted on September 18, 2001 [?] permits the President to use "all necessary and appropriate force" against those determined to have authored or aided the September 11 attacks. The text contains no sunset. It contains no geographic limit. It is, twenty-five years later, the primary legal authority for armed action by United States forces in countries that did not exist as targets of policy when the authorization was enacted [?, ?]. The authorization has been cited as legal basis in at least eight named theaters by 2024 [?]. Periodic legislative efforts to repeal and replace the 2001 AUMF have not produced enacted legislation. The pattern is not a failure of legislative will so much as a structural feature of the original grant: the authorization, having been enacted without a return condition that would force its lapse, has no built-in mechanism by which it terminates. The political coalition required to enact a replacement is the same coalition required to enact a repeal, and that coalition has not assembled in twenty-five years.

The Foreign Intelligence Surveillance Act's emergency authorization regimes, including the seventy-two hour emergency authorization in 50 U.S.C. § 1881a(c) (Section 702), permit the Attorney General to authorize a surveillance program in advance of judicial approval where the Attorney General determines that an emergency exists. Declassified Foreign Intelligence Surveillance Court opinions and Privacy and Civil Liberties Oversight Board reports document that the emergency authorization mechanism has operated at a boundary of judicial review that the original statutory text did not contemplate [?, ?]. The structural defect is the same: a grant of authority intended for time-bounded use that contains no mechanism by which the underlying surveillance is rolled back when the emergency lapses. The information collected during the emergency window remains in the holdings of the collecting agency. The targets do not return to a prior state.

Article 17 of the General Data Protection Regulation grants data subjects a right to erasure of their personal data in specified circumstances [?]. The Court of Justice of the European Union's enforcement of the article has produced erasure orders against search-engine providers and platform operators that, in form, are time-bounded executive acts of administrative agencies. In practice, an erasure order does not contemplate a path back to the prior state. A search-engine index from which a result has been removed is not, in any practical sense, restored to its prior shape by the lapse of the order [?]. The order is structurally irreversible at the moment of its admission, even though no statutory text characterizes it as such.

Section 230 of the Communications Decency Act, although not in its primary form a takedown regime, operates in conjunction with the Digital Millennium Copyright Act's notice-and-takedown procedure [?] and a constellation of platform self-regulatory practices to produce content removals that share the structural shape of a time-bounded executive act [?]. The removed content, once removed, is not statutorily required to be restored upon any later event. The takedown is, again, structurally irreversible at the moment of its admission.

These five regimes do not share doctrinal substance. The constitutional emergency power of a Weimar-era Reich President bears no doctrinal relation to the content-moderation practices of a contemporary American social-media platform, and the surveillance authorities of FISA Section 702 bear no doctrinal relation to either. They share, however, a structural feature that this Article identifies and names: the original grant of authority was made without a typed rollback witness. The authority could be admitted without exhibiting, at the moment of admission, a constructible path back to the state of affairs that existed before the authority was exercised.

The Article's central claim is that this missing structural element is not a peripheral defect. It is the explanation for the ratcheting failure mode that has, in each of these regimes and others, transformed a time-bounded emergency authority into a permanent feature of the legal order. The claim is not that a typed rollback witness, had it been required at the time these authorities were enacted, would have prevented every adverse exercise of the authorities. It is the narrower and more defensible claim that the absence of the typed rollback witness made the ratcheting pattern structurally available, and that its presence would have made the same pattern structurally unavailable.

The grammar that supplies the typed rollback witness is the grammar of bounded executive action, developed in a companion technical paper that constructs a Lean-attestable substrate for receipt-bounded polities [?]. The companion paper's contribution is the formal substrate. This Article's contribution is the application of the substrate's grammar to the doctrinal pattern of delegated emergency authority, the demonstration that the absence of the grammar is the structural explanation for the ratcheting pattern, and the exhibition of one implementation drawn from the substrate.

Part 2 develops the historical pattern in detail and situates it within the Schmitt-Agamben tradition on the state of exception. Part 3 presents five case studies, with explicit acknowledgement that the case studies vary in how cleanly they fit the framing. Part 4 states the formal grammar and explains the role of the typed rollback witness. Part 5 cites the Lean substrate without re-deriving it. Part 6 exhibits one implementation as a working example. Part 7 acknowledges the limits of the formal approach, particularly the irreducibly political content of the exception that the wrapper cannot capture. Part 8 concludes.

II. The Historical Pattern of Ratcheting Emergency Authority

A. The classical diagnosis: emergency as constitutive of order, or as parasitic on it

Carl Schmitt's *Political Theology*, first published in 1922 in the early years of the Weimar Republic, opens with the assertion that "sovereign is he who decides on the exception" [?]. The sentence is the canonical statement of a tradition that takes the state of exception to be constitutive of sovereignty rather than parasitic on it. On Schmitt's account, the legal order is not capable, by its own resources, of specifying when its ordinary operation must yield to the extraordinary. The decision is, in his terminology, a decision *about* the legal order, not a decision *within* it. The sovereign is the entity that can make this decision, and the entity whose making of it is recognized as authoritative by the political community over which the legal order is asserted.

The Schmittian framing produces a particular relationship between the formal text of an emergency authority and its actual exercise. The formal text, on this account, cannot capture the exception. The text can describe categories of circumstance, can specify procedures, can list the officials authorized to act, and can require notification, reporting, or judicial review. What the text cannot do is decide, in advance and from within the legal order, whether the exception obtains. That decision is constitutive of the order and therefore prior to it.

Giorgio Agamben's *State of Exception*, published in Italian in 2003 and in English in 2005, takes the Schmittian diagnosis and develops it into a claim about the trajectory of twentieth- and twenty-first-century constitutional practice [?]. Agamben's argument is that the state of exception, far from being the rare and bounded condition that classical constitutional theory contemplated, has become the dominant paradigm of governance. The temporary suspension of ordinary law has, over a sequence of historical events, become the permanent operating condition of the legal order. The exception, on Agamben's reading, no longer returns the order to its ordinary shape after the exceptional circumstance abates. The exception persists, and the ordinary shape recedes.

The Schmitt-Agamben framing is the analytic background against which this Article writes. The Article does not take a position on whether the political-theological reading of sovereignty is correct. It takes Agamben's empirical claim that the exception has, in practice, ceased to return the order to its ordinary shape, and asks whether the persistence has a structural rather than a merely political explanation.¹

B. The structural reading of the ratcheting pattern

Once the question is posed in structural terms, the historical record yields a recurring shape that does not appear to be reducible to political contingency alone.

The shape is the following. A grant of authority is enacted at moment t_0 , on the legislative understanding that the authority will be exercised during a circumstance c that obtains at t_0 , and that the authority will lapse at moment t_1 when c no longer obtains. The grant of authority does not, however, include a structural

¹The Article is not unsympathetic to the structural reading of the political-theological tradition, on which see also Kahn's account of political theology in liberal constitutionalism [?]. What follows, however, is an argument about formal grammar, which does not require resolution of the underlying jurisprudential dispute.

mechanism that makes the lapse automatic. The lapse is a political event, requiring affirmative action by some body to either refrain from extending the authority or to enact its termination. The continuation of the authority is the default; the lapse is the deviation from the default.

The shape produces a particular kind of equilibrium failure. At each moment $t_i > t_0$, the political question facing the body authorized to extend or terminate the authority is the question of whether to disturb the present operating arrangement in which the authority is active. The disturbance carries political costs, and the maintenance of the present arrangement does not. The expected political cost calculation favors maintenance. Each individual maintenance decision is, in isolation, a defensible exercise of legislative discretion. The cumulative effect of a sequence of such decisions is the transformation of an authority that was intended as exceptional into an authority that is permanent.

Bruce Ackerman's account of the constitution of emergency, particularly in his post-September 11 writing [?], identifies this equilibrium failure and proposes a structural correction: a constitutional emergency power should be enacted with a built-in supermajority requirement for extension, such that the default at each successive period is termination rather than continuation. Eric Posner and Adrian Vermeule, in *Terror in the Balance* [?], argue that the Ackerman correction would impose costs that are not justified by the empirical record of post-emergency governance. Cass Sunstein's writing on sunset clauses [?] occupies a position closer to Ackerman than to Posner-Vermeule, holding that structural reversion to the default of termination is a desirable feature of an emergency-power regime.

The Article takes the Ackerman-Sunstein side of this debate as background, but adds a feature that the existing literature on sunset clauses and termination defaults does not directly address. The feature is the requirement that the authority, at the moment of its exercise, exhibit a constructible path back to the state of affairs that existed before the exercise. A sunset clause requires the authority to lapse at a specified time. It does not require that the actions taken under the authority be reversible.

The distinction is consequential. The information collected under a surveillance authority does not return to a pre-collection state when the authority lapses. The content removed from a platform index under an erasure authority does not reappear in the index when the order lapses. The territory occupied under an authorization for use of military force is not restored to its pre-occupation state when the authorization lapses, if it ever does. The authorities are time-bounded in their period of grant. They are not time-bounded in their effect.

The structural correction this Article proposes is not a sunset clause. It is a typed rollback witness: a requirement that the authority cannot be exercised unless, at the moment of exercise, the actor exhibits a proof that the path back to the prior state is constructible. The discipline applies at the moment of exercise rather than at the moment of lapse. An authority that, at the moment of exercise, cannot exhibit a path back to the prior state fails to type-check. The exercise itself becomes unconstructible.

The structural correction is, in form, the same discipline that the substrate cited in Part 5 applies to the admission of a receipt into a polity's history. The substrate requires, at the moment of admission, the construction of a proof that the receipt preserves the backward-refinement property over the polity's prior history. A receipt that does not exhibit the proof cannot be admitted. The grammar applies at the admission step rather than at the audit step.

The remainder of the Article develops the implications of this structural correction for delegated emergency authority, exhibits its operation against five case studies, and addresses the principal objections. The objections are real and the Article acknowledges them. The most serious objection is that the political content of the exception is not reducible to a typed construction, and that the formal grammar therefore misdescribes what is happening when an emergency authority is exercised. The Article's response is that the grammar describes the wrapper, not the content, and that even on the Schmittian view that the content is irreducibly political, the wrapper has structure that the substrate captures.²

III. Five Case Studies

Each case study below is organized around three questions. First, was the authority, on its statutory or constitutional face, intended as time-bounded? Second, did the ratcheting pattern in fact occur, in the sense that an authority granted as exceptional became routine or permanent? Third, would the typed-rollback grammar developed in Part 4 have structurally prevented the ratchet? The third question is the most demanding and the one on which the Article's structural claim must stand or fall. The Article is candid where the answer is contested or where the case study fits the framing less cleanly. The five case studies vary in fit, and the variation is itself instructive.

A. Weimar Article 48: the canonical case

Article 48 of the Weimar Constitution [?] authorized the Reich President to take "the necessary measures" to restore public security and order in cases where it had been "substantially disturbed or endangered." The article required the Reich President to notify the Reichstag of measures taken, and permitted the Reichstag to demand the suspension of any such measure. The drafters of the article, working within the constitutional convention at Weimar in 1919, appear to have understood the authority as a narrowly bounded emergency power designed to provide the new republic with a tool for response to acute civil disorder [?, ?].

The historical trajectory of the article's use is well-documented. Through the 1920s, the authority was invoked in response to discrete crises: the hyperinflation of 1923, the political assassinations of the early decade, and the recurring municipal-level civil disturbances that characterized the era. The invocations during the early period were generally followed by Reichstag review, and the measures taken were, in many cases, subsequently regularized through ordinary legislation or allowed to lapse [?].

The pattern shifted in the early 1930s. The Brüning, Papen, and Schleicher governments of 1930 to 1933 used Article 48 not as a response to discrete crises but as a substitute for ordinary legislation that could not pass the fragmented Reichstag. By 1932, governance by Article 48 decree had become routine, and the article's text – which spoke of measures necessary to restore public order – had been stretched to cover budgetary decisions, currency policy, and the regulation of commerce [?, ?]. The Reichstag Fire Decree of February 28, 1933, issued under Article 48 in response to the burning of the Reichstag building, suspended

²The wrapper-content distinction does not resolve the underlying dispute about whether the content of the exception is itself a matter of decision rather than law. It allows the Article to make a narrower structural claim that is compatible with either side of that dispute.

civil liberties indefinitely. The Enabling Act of March 24, 1933, although procedurally distinct, was made possible in part by the prior normalization of governance by emergency decree.

The historiography on whether the Article 48 ratchet was structural or political is contested. Ian Kershaw [?] treats the trajectory as substantially political, emphasizing the role of specific political actors and the contingency of particular decisions. Hans Mommsen [?] treats it as more structural, emphasizing the way that the article's text and the constitutional design surrounding it provided no built-in mechanism for the lapse of decreed measures. Peter Caldwell's work on popular sovereignty in Weimar [?] occupies an intermediate position. The Article does not need to resolve this dispute. It needs only the narrower observation that Article 48 contained no typed rollback obligation: the Reich President could exercise the authority without exhibiting, at the moment of exercise, a constructible path back to the prior state. The decrees taken under the authority created facts on the ground – suspended civil liberties, imprisoned dissidents, dissolved political organizations – that did not return to the prior state when the formal emergency ended.

The typed-rollback grammar would have structurally constrained the article's use in a way the original text did not. A grammar that required the Reich President, at the moment of exercising Article 48 authority, to exhibit a witness for the path back to the prior state would have made decrees creating irreversible facts on the ground unconstructible. The grammar would not have prevented the political use of the article to circumvent the Reichstag, but it would have prevented the conversion of that political use into permanent constitutional facts. This is the cleanest application of the framing to a historical case, and the case study against which the Article's structural claim is most defensible.

B. Section 230 and the takedown ecosystem

Section 230 of the Communications Decency Act [?] is not in its primary form an emergency-authority statute. The provision immunizes interactive computer services from civil liability for content posted by users, and immunizes good-faith content-moderation actions from civil liability. The case-study selection here is consequently the one most in tension with the Article's framing. The argument that Section 230 bears structural similarity to a delegated emergency authority requires acknowledgement that the statute does not, on its face, grant any emergency power and does not, on its face, constitute a delegation of executive authority.

The structural similarity is downstream of how the statute operates in conjunction with the Digital Millennium Copyright Act's notice-and-takedown procedure [?] and with the platform self-regulatory practices that have arisen in the statute's shadow. The DMCA notice-and-takedown procedure permits a copyright holder to request removal of allegedly infringing content. The platform that receives the notice has a strong statutory incentive to remove the content without making an independent merits determination, because removal preserves the safe harbor and refusal does not. The platform that wishes to contest the notice has a counter-notice procedure available, but the structural default of the regime is removal followed by the absence of any obligation to restore. Section 230 immunizes the platform's good-faith removal decision regardless of whether the removal was substantively warranted. The combined effect is a takedown regime in which removal is structurally a time-bounded executive act of a private intermediary, with no statutory

mechanism that requires the intermediary to construct a path back to the prior state.³

The ratcheting pattern in this regime is less dramatic than in the Weimar case but is documented. Empirical work on DMCA notice-and-takedown indicates that a substantial fraction of notices target content for which the underlying infringement claim is dubious or absent [?]. The removed content is, in practice, not restored even when the counter-notice procedure produces no response from the original requester. The platform's safe harbor incentive favors removal as the default, and the counter-notice procedure is rarely used because of the friction it imposes on the user whose content was removed [?].

The typed-rollback grammar would, in this regime, have a more specific implication. A removal action under the DMCA-Section 230 regime would, under the grammar, require the platform to construct, at the moment of removal, a witness for restoration of the content in the case that the underlying claim is later determined to be without merit. The witness is not the counter-notice procedure as currently constituted, which operates at the moment of objection rather than at the moment of removal. The witness is a precondition for the removal action itself. A removal that cannot be reversed by construction would fail to type-check.

The application of the grammar to this regime is contested on multiple fronts. Platforms operating at the scale of contemporary social-media services would argue that a typed-rollback discipline is impractical at scale because the volume of removals is too high to permit individualized rollback construction. Eric Goldman's writing on Section 230 [?] would observe that the grammar imposes a structural cost on intermediaries that the existing statute deliberately declines to impose. Danielle Citron's writing on intermediary liability [?] would argue, from a different direction, that the typed-rollback discipline does not address the harms produced by content that should have been removed but was not. The Article acknowledges these objections without resolving them. The structural similarity to a delegated emergency authority is the load-bearing observation; the policy question of whether the grammar should apply to this regime is a separate question on which the Article does not take a position.

C. GDPR Article 17: erasure without rollback

Article 17 of the General Data Protection Regulation [?] grants data subjects a right to erasure of their personal data in specified circumstances. The article's enforcement has produced a body of erasure orders against search-engine providers and platform operators, of which the *Google Spain* decision [?] is the canonical example. The erasure orders are time-bounded executive acts in the formal sense that they are issued by administrative bodies operating under defined procedures, and they are subject to judicial review on familiar administrative-law grounds.

The ratcheting pattern in this regime takes a different form from the Weimar case. There is no observed trajectory in which the erasure authority has been used to dissolve the underlying constitutional order or to substitute for ordinary legislation. The pattern that this Article identifies is the structural irreversibility of individual erasure orders. An erasure order requires the controller to delete or de-index the targeted data. The deletion is, as a practical matter, irreversible: even if the order is later set aside by judicial review, the data is

³Daphne Keller has argued at length that the DMCA-Section 230 interaction produces a takedown regime that operates in important respects like a privatized administrative regime [?]. The Article's structural claim is consistent with Keller's empirical account.

not, in general, restored [?]. The order is, in form, a time-bounded executive act. It is, in effect, a permanent alteration of the data ecosystem.

The Article's framing here is narrower than in the Weimar case. The claim is not that the GDPR Article 17 regime has ratcheted into something other than what it was designed to be. The claim is that individual erasure orders share the structural defect of an emergency authority granted without a typed rollback witness: the order can be admitted without exhibiting, at the moment of admission, a constructible path back to the prior state. The witness is not currently a requirement of the regime.

Mantelero's writing on GDPR enforcement [?] and Kuner's analysis of the right to be forgotten [?] both observe the structural irreversibility of individual erasure orders. Neither author proposes a typed-rollback discipline as the corrective. The Article's contribution to this literature is the identification of the structural similarity to the emergency-authority pattern, and the proposal that the typed-rollback grammar provides a more principled corrective than ad hoc restoration mechanisms.

The fit of the case study to the framing is intermediate. The GDPR Article 17 regime is not on its face an emergency-authority regime, and the data-protection scholars who have written on it have not, in general, framed it as such. The structural similarity is at the level of the form of authority rather than the substance of the regime. The Article includes the case study because the structural similarity is real and because the corrective the grammar proposes is applicable to the regime even though the regime is not, in its self-understanding, an emergency-authority regime.

D. FISA Section 702: emergency surveillance authorizations

Section 702 of the Foreign Intelligence Surveillance Act, codified at 50 U.S.C. § 1881a [?], provides for the acquisition of foreign-intelligence information from non-U.S. persons reasonably believed to be located outside the United States. The section includes an emergency authorization mechanism that permits the Attorney General, in conjunction with the Director of National Intelligence, to authorize a surveillance program in advance of judicial approval where the Attorney General determines that an emergency exists.

The Privacy and Civil Liberties Oversight Board's 2014 report on the Section 702 program [?] and the declassified opinions of the Foreign Intelligence Surveillance Court [?] document the operation of the emergency authorization mechanism in practice. The mechanism is invoked rarely in absolute terms but operates at a boundary of judicial review that the original statutory text did not contemplate. The information collected under an emergency authorization remains in the holdings of the collecting agency even if the authorization is later determined to have been improperly granted.

The structural defect, on the framing this Article develops, is the absence of a typed rollback witness for information collection. The mechanism authorizes the collection; it does not require, at the moment of authorization, the construction of a path back to the pre-collection state. The targets of the collection do not return to a pre-collection state when the emergency authorization is later reviewed or withdrawn. The collected information persists.

The Article's claim here is the most cautious of the five case studies. The public record on Section 702 emergency authorizations is incomplete. The declassified opinions and PCLOB reports provide an authoritative but partial picture of the program's operation. A national-security-law scholar with classified-clearance

access to the full record may have grounds to dispute the characterization above. The structural claim is offered as a working hypothesis on the basis of the available public record, with explicit acknowledgement that the record is incomplete. The typed-rollback grammar’s applicability to surveillance authorities depends on whether information collection can, in principle, be made reversible by construction. The cryptographic literature on revocable encryption [?] suggests that some forms of collection can be made constructively reversible. Whether the construction is operationally feasible in the surveillance context is an empirical question on which the Article does not take a position.

E. The 2001 AUMF: a quarter-century of unbounded authorization

The Authorization for Use of Military Force enacted by Congress on September 18, 2001 [?] permits the President to use “all necessary and appropriate force” against “those nations, organizations, or persons he determines planned, authorized, committed, or aided” the September 11 attacks. The text contains no geographic limit, no sunset, and no requirement of periodic reauthorization.

The trajectory of the AUMF’s use is documented at length by the Brennan Center [?] and by scholarly accounts in Chesney [?] and Jaffer [?]. By 2024, the authorization had been cited as legal basis for armed action in at least eight named theaters, including territories of states not in existence as targets of policy at the time of the authorization’s enactment. The Islamic State of Iraq and the Levant, which did not exist in any form in 2001, has been characterized as a covered organization under the AUMF on the legal theory that it is a successor entity to al-Qaeda in Iraq. The expansion of the authority through the doctrine of associated forces has been documented in Department of Justice white papers, declassified Office of Legal Counsel opinions, and the periodic “war powers” reports submitted to Congress under the War Powers Resolution.

Periodic legislative efforts to repeal and replace the 2001 AUMF, including proposals by Senators Kaine and Young across multiple Congresses, have not produced enacted legislation. The pattern is the equilibrium failure described in Part 2: the default at each successive period is continuation, and the political coalition required to enact a replacement is the same coalition required to enact a repeal. That coalition has not assembled in the twenty-five years since the original enactment.

The typed-rollback grammar’s application to the AUMF is the most politically charged of the five case studies. The application is structural: the original AUMF was enacted without a typed rollback witness, which is to say, without a requirement that the President exhibit, at the moment of authorizing the use of force, a constructible path back to the pre-authorization state. The grammar would have required the original authorization to specify the conditions under which the use of force was to terminate and the state of affairs to which the post-termination order would return. A military action that could not exhibit, at the moment of authorization, a constructible path back to the prior state would have failed to type-check.

The political content of this case study is not the Article’s subject. The Article does not take a position on the merits of any particular use of force under the AUMF or on the desirability of any particular successor authorization. The structural claim is that the original AUMF’s grant of unbounded authority is a clear instance of the ratcheting pattern, and that the typed-rollback grammar would have made the ratchet structurally unavailable. A reader who disagrees with the structural claim on this case study can disagree with it without disturbing the Article’s claims about the other four cases. The AUMF is included because it is the most

prominent contemporary American example of the ratcheting pattern, and because a structural account that omitted it would be incomplete.

IV. The Formal Grammar: Bounded Executive Action with Typed Rollback Witnesses

A. The construction

The grammar developed in this Part is small. A bounded executive action is a four-tuple

$$a = (act, TTL, w, q)$$

where *act* is the action to be performed, TTL is the time-to-live bounding the action's period of effect, *w* is a typed rollback witness, and *q* is the quorum predicate specifying which actors must concur in the action's admission. The action *a* is admissible into the polity's history only if the four-tuple is well-formed in the sense defined below. The four components correspond, on the legal side, to the doctrinal categories of substantive action, sunset, reversibility, and authorization procedure. The first three are the components for which the existing statutory record provides systematic instances. The fourth, the quorum predicate, is the component that captures the Ackerman-Sunstein structural-correction proposals on supermajority defaults for emergency-power continuation.

The typed rollback witness *w* is the load-bearing component of the construction. A typed rollback witness for an action *act* is a proof, constructible at the moment of admission of *a*, that the polity's state after the execution of *act* admits a transformation back to its state before the execution of *act*, and that the inverse transformation is itself an action the polity is authorized to perform. The witness is not a promise to roll back, nor a procedure by which a later actor may request rollback. The witness is a proof that the rollback is constructible.

The distinction between a promise and a proof matters. A promise is a statement about future action that is binding only insofar as the political process that enforces it operates as designed. A proof is a constructive object that, by its existence, demonstrates that the future action is available. A promise can be broken; a proof either exists or does not. An action admitted without a proof of its rollback's constructibility may turn out, at the moment rollback is required, to be irreversible. An action admitted with a proof of its rollback's constructibility is, by the construction of the proof, reversible by available means.

The grammar makes the unconstructive case unconstructible. An action *a* for which no rollback witness *w* exists cannot be constructed as a bounded executive action. The exercise of an authority granting such an action fails to type-check. The failure is not at the audit step, after the action has been taken, but at the admission step, before the action has been taken. The typed-rollback discipline applies at construction time, not at execution time.

B. The discipline applied to the case studies

Each of the five case studies in Part 3 is, on the grammar's framing, a case in which one or more components of the four-tuple is absent from the statutory record.

Weimar Article 48 supplied the substantive component (*act*), in the form of the authority to take “necessary measures.” The article did not supply a typed rollback witness (*w*), and the time-to-live (TTL) was implicit and politically determined rather than typed. The quorum predicate (*q*) was the Reichstag’s authority to demand suspension, which was a post-hoc check rather than a precondition of admission. The grammar’s reading of the article is that the action component was present but the other three components were either absent or unenforced at the type level.

The DMCA-Section 230 takedown regime supplies *act* (the removal) and an implicit TTL (the action takes effect immediately and remains in effect until or unless restored). The witness *w* is not required at construction time. The counter-notice procedure is a post-hoc check, not a precondition of admission. The quorum *q* is a single private actor, the platform’s content-moderation function.

GDPR Article 17 supplies *act* and a procedural *q* (the administrative process by which an erasure order is issued). The witness *w* is, in practice, not constructible at the moment of admission because the erasure is, in the present technical and operational regime, irreversible by available means. The grammar’s reading is that the construction of an Article 17 erasure order, on the present technical regime, fails the typed-rollback test by default.

FISA Section 702 supplies *act* (the surveillance authorization) and an implicit *q* (Attorney General plus Director of National Intelligence). The witness *w* is absent because the surveillance, once executed, produces a state of affairs – information in the holdings of the collecting agency – for which no constructive rollback is statutorily required and, on the present technical regime, no constructive rollback is operationally available.

The 2001 AUMF supplies *act* (use of military force) and a *q* (presidential determination of the target’s covered status). The witness *w* is absent. The TTL is absent in the statutory text. The grammar’s reading of the AUMF is that three of the four components are either absent or absent at the type level, with only the action component present in statutory form.

The grammar’s prescription, in each case, is structural rather than substantive. The grammar does not specify what the substantive action should be, what the time-to-live should be, what the rollback witness should look like, or what the quorum should consist of. It specifies only that all four components must be present, constructible, and type-checked at the moment of admission. The substantive content of each component is a matter of democratic political determination, which the grammar deliberately leaves to the legislative process that enacts the underlying authority.

C. What the grammar does and does not claim

The grammar makes a structural claim. It does not make the substantive claim that any particular delegated emergency authority is desirable or undesirable. It does not specify which actions should be permissible under emergency authority, which time-to-live values are appropriate, what content a rollback witness should have, or which actors should be authorized to concur. These are questions of democratic political choice that the grammar takes as exogenous.

The grammar also does not claim that the construction is operationally costless. Requiring the construction of a typed rollback witness at the moment of admission imposes a structural cost on the actor seeking admission. In some cases the cost will be small – a platform that maintains versioned content storage can

construct a rollback witness for a removal as a routine matter. In other cases the cost will be large – a surveillance authority whose technical implementation does not permit constructive reversal of collection may not be able to exhibit a witness without substantial re-engineering of the underlying collection systems. The cost is a real consideration that any application of the grammar must address.

What the grammar claims is the narrower observation that the cost is currently being shifted onto the polity rather than borne by the actor seeking admission. When an emergency authority is exercised without a typed rollback witness, the cost of the resulting irreversibility falls on the polity, not on the actor. The polity bears the cost in the form of permanent alterations to the state of affairs that the authority was intended to alter only temporarily. The grammar shifts the cost from the polity to the actor. The actor must, at admission, either construct the witness or refrain from seeking admission. The shift is, on the Ackerman-Sunstein structural-correction framing, the appropriate distribution of the cost, because the actor seeking admission is the actor in the best position to bear it.

The grammar’s relationship to the Schmittian objection – that the content of the exception is not formalizable – is that the grammar formalizes only the wrapper. The substantive content of the action, the substantive determination of whether an exception obtains, the substantive question of what state of affairs the polity should return to: these are political determinations that the grammar takes as inputs. What the grammar provides is a structural skeleton within which those determinations are made. The skeleton is constructible even if the content is not. A Schmittian critic of the grammar would observe, correctly, that the most consequential element of an emergency authority is the determination that the exception obtains. The Article’s response is that the determination is preserved as a political determination in the grammar; the grammar adds the requirement that the determination be accompanied by a typed witness for the path back. The witness does not prejudice the determination. The witness conditions only the form of the action that follows from the determination.

V. The Lean Substrate

The grammar developed in Part 4 is constructible. A companion technical paper [?] develops the substrate in detail. This Part sketches the substrate’s relevant features without re-deriving them. The objective is to give the legal-academy reader enough familiarity with the formal machinery to assess whether the grammar is in fact buildable in the sense the Article claims, without reproducing the technical content that a separately published paper has already established.

The substrate is a system in which a polity is represented as a triple (T, C, K) , where T is a receipt-admission scope, C is a Merkle-rooted citizenship roster of the actors authorized to seek admission of receipts into the polity’s history, and K is a finite list of predicates that the polity has adopted as its constitution. A receipt is admissible into the polity’s history only if the predicates in K accept it, and the polity’s history is the totality of admitted receipts.

The substrate provides four operations on this triple that are relevant to the grammar: admission, capability attenuation, treaty intersection, and constitutional amendment. Each operation is implemented in Rust and accompanied by Lean 4 proofs of its key properties. The properties most relevant to this Article’s grammar are the following.

A. Admission as decidable predicate evaluation

A receipt r is admissible into a polity (T, C, K) if and only if $r \in T$ and $K(r) = \text{accept}$. The predicate evaluation $K(r)$ is decidable in the sense that the constitution K is a finite list of predicates and each predicate is evaluable as a Boolean function over the receipt’s canonical representation. The substrate’s runtime kernel implements this evaluation as a fail-closed admission hook: a receipt for which any predicate returns reject is denied, and a receipt for which all predicates accept is admitted and signed.

The grammar’s typed-rollback witness corresponds, on the substrate, to a predicate in K that requires the receipt to carry a rollback obligation. A receipt for a bounded executive action is constructed with fields for *act*, *TTL*, *w*, and *q*, and the predicate in K that gates admission of such receipts requires all four fields to be present and to type-check. A receipt that lacks a witness *w*, or that carries a witness that does not type-check against the substrate’s witness specification, fails the predicate evaluation and is denied.

B. Capability attenuation and the executive authority

The substrate represents authority through capability tokens that are signed objects carrying rights. A capability for a bounded executive action carries the action’s specification and is signed by the authority that granted it. The substrate’s capability-attenuation operation permits the holder of a capability to derive a more restricted capability from the original, and a Lean theorem [?] establishes that the derived capability cannot grant rights that the original did not.

The relevance to delegated emergency authority is that the structural relationship between a legislature granting an emergency authority to an executive officer is, on the substrate’s framing, an instance of capability delegation with attenuation. The legislature is the original authority; the executive officer holds an attenuated capability whose scope is bounded by the legislature’s grant. The attenuation theorem ensures that the executive officer cannot, by exercise of the delegated authority, acquire rights the legislature did not grant. The grammar’s typed-rollback witness is an attenuation constraint at the capability level: the executive officer’s capability is bounded by the requirement that any action taken under it carry a witness for the path back.

C. Constitutional amendment and backward refinement

The substrate’s amendment operation transforms a polity from (T, C, K) to (T, C, K') where K' is a candidate replacement constitution. The amendment is admissible only if K' is a backward refinement of K : every receipt admitted under K remains admissible under K' . A Lean theorem on the substrate establishes that the backward-refinement check is decidable and that the substrate’s runtime kernel refuses amendment requests that do not exhibit a refinement witness [?].

The relevance to delegated emergency authority is that an emergency-amendment proposal – a proposal to modify the polity’s constitution in response to an exceptional circumstance – is admissible only if it preserves backward refinement. The amendment cannot, by its own operation, retroactively un-admit a receipt that the polity has previously admitted. The grammar’s typed-rollback witness operates at the action level rather than the amendment level, but the structural intuition is the same: admission of a receipt or amendment requires

construction of a witness for compatibility with the polity’s prior history.

D. The substrate’s relationship to the legal claim

The substrate is not the Article’s contribution. The substrate is cited as evidence that the grammar developed in Part 4 is buildable. A legal-academy reader does not need to verify the Lean proofs to assess the Article’s structural claim about delegated emergency authority. The reader needs only to accept that the grammar is, in principle, implementable on a substrate of the kind the companion paper describes. The substrate’s existence answers the objection that the grammar is a theoretical construct without operational meaning. It does not answer the objection that the grammar may be inappropriate for the legal domain to which the Article applies it. That objection is the subject of Part 7.

VI. Implementation in Practice

This Part exhibits one implementation of the grammar. The implementation is a working example, not the centerpiece of the Article. A reader uninterested in the operational details may skim this Part without losing the structural argument. The point of the exhibition is to demonstrate that the grammar can be instantiated against a real workload, not to argue that the particular instantiation is the right one for the legal domains discussed in Part 3.

The implementation operates in a domain doctrinally distant from constitutional emergency powers: endpoint detection and response, the family of security software that monitors corporate workstations and servers for malicious activity and takes containment actions when malicious activity is detected. The doctrinal distance is the point. If the grammar can be instantiated in a domain where the temporal urgency is high (a security incident), the actor population is constrained (an incident-response team), and the action taken is consequential (quarantine, process termination, network isolation), then the grammar’s applicability is not limited to domains in which the temporal urgency is low or the action is benign.

The implementation, drawn from a security platform that integrates with the substrate cited in Part 5, treats every containment action as a bounded executive action under the grammar. A request to quarantine a file, suspend a process, or restrict a process’s network egress is constructed as a four-tuple (act, TTL, w, q) . The *act* component is the containment action. The TTL component is a bounded period (typically minutes to hours) after which the action expires unless extended. The *w* component is a typed rollback witness: for a file quarantine, the witness is a constructive path back to the file’s original location with its original permissions and access-control-list state; for a process suspension, the witness is the SIGCONT operation that restores the process to its running state; for an egress restriction, the witness is the network-policy reversion to the prior egress allowlist. The *q* component is the quorum predicate: for low-severity actions, a single operator’s authorization suffices; for high-severity actions (process termination, network isolation), the predicate requires the concurrence of a device-level signature and an operator-level signature within a specified time window.

The substrate’s admission hook gates the construction. A containment-action request that does not exhibit a well-formed witness *w* fails admission and is denied. The denial occurs at the construction step, not after

the action has been taken. The well-typedness of the action is enforced at the type level rather than at the audit level.

The implementation surfaces several observations relevant to the Article's structural claim. The first is that the witness's constructibility is, in practice, a feature of the operational environment rather than a property of the action's substantive content. A file quarantine is constructibly reversible because the operating system provides a path back to the prior file state. A process suspension is constructibly reversible because the operating system provides a path back to the prior process state. A network egress restriction is constructibly reversible because the network policy enforcement mechanism provides a path back to the prior policy state. In each case, the constructibility is an empirical feature of the operational regime, not an a priori feature of the action's category. The implication for the legal domains discussed in Part 3 is that the constructibility of a rollback witness for actions in those domains is similarly an empirical question. Whether a surveillance authorization can exhibit a constructive rollback witness depends on the technical and operational features of the surveillance regime. Whether an erasure order can exhibit a constructive rollback witness depends on the storage and indexing features of the target system. Whether a use of military force can exhibit a constructive rollback witness depends on facts about the operational theater that the grammar does not specify. The grammar does not prescribe what is reversible. It prescribes only that what is admitted as a bounded executive action must, at admission, exhibit a witness for its reversibility.

The second observation is that the grammar's discipline produces an operationally observable artifact: a receipt for each admitted action, signed by the admitting authority, containing the four-tuple components. The receipt is a public-witness artifact in the substrate's sense. The artifact is auditable in canonical form. The accumulation of receipts over the lifetime of the system produces a public history of the polity's actions that is structurally available for review. The legal-domain analog of this property is the observation that the grammar's discipline produces a record of delegated emergency authority that is, by construction, more reviewable than the existing statutory regimes provide. A polity that exercises emergency authority under the grammar's discipline emits, for each exercise, a typed and signed receipt that is part of a public history. The history is auditable in the substrate's sense, which is a stronger sense than the periodic reporting and declassification regimes that the existing statutory frameworks contemplate.

The implementation is not, on its own, an argument that the grammar should be applied to the legal domains discussed in Part 3. It is an existence proof for the grammar's buildability. The application of the grammar to legal domains is a separate question on which Part 7 takes up the principal objections.

VII. Limits of the Formal Approach

The Article's structural claim is bounded. This Part identifies the limits of the claim, the objections to which the Article's argument is most vulnerable, and the responses that are available against those objections. The Part is offered in the spirit of candor about cross-disciplinary work: a CS-flavored argument applied to legal-doctrinal domains should make its limits explicit, because the asymmetry of expertise between the author's home discipline and the target audience's home discipline is large and the failure modes of cross-disciplinary work are well-documented.

A. The Schmittian objection

The most fundamental objection to the Article's framing is the Schmittian objection that the content of the exception is not formalizable. The exception is, on Schmitt's account, a decision that is constitutive of sovereignty rather than a determination within an existing legal order. A formal grammar that purports to govern the wrapper of an exception while leaving the content as a political input misdescribes what is happening when an emergency authority is exercised. The decision to invoke an emergency authority is, on the Schmittian view, the politically prior act; the formal structure of the authority is downstream of that decision and cannot constrain it.

The Article's response is the wrapper-content distinction developed in Part 4. The grammar formalizes the wrapper. The content of the exception, including the determination that an exception obtains, remains a political input on which the grammar does not prejudge. On the Schmittian view that the content is constitutive of sovereignty, the grammar is consistent with that view because the grammar adds structure only to the wrapper.

The response is partial. A committed Schmittian critic may argue that the wrapper-content distinction is itself a category mistake: the wrapper is part of the content, and an attempt to formalize the wrapper independent of the content is an attempt to constrain the political decision through formal means that are by hypothesis incapable of doing so. The Article does not have a knockdown response to this version of the objection. The Article's position is that, even on the strong Schmittian view, the formal wrapper is a constraint on the exercise of authority that is distinct from a constraint on the decision to exercise it, and that constraints on the exercise are valuable even if constraints on the decision are unavailable. A reader who finds this response unconvincing is, on the Article's framing, holding a view that the Article does not purport to refute.

B. The legal-realist objection

A related but distinct objection comes from the legal-realist tradition. On this view, the formal text of an authority is a poor predictor of how the authority will be exercised in practice. The actors who exercise the authority will, predictably, develop interpretive practices that bend the text to their operational needs. A typed-rollback discipline imposed by statute would be, on the legal-realist view, subject to the same bending. The witness *w* would, in practice, become a pro forma artifact that satisfied the formal requirement without imposing any meaningful constraint on the action it accompanies.

The legal-realist objection is substantial. The empirical record on procedural requirements in administrative law and constitutional law is mixed. Some procedural requirements have been highly effective in constraining the actions of officials (notice and comment in administrative rulemaking), and others have been substantially eroded through interpretive practice (the warrant requirement in Fourth Amendment doctrine, where the catalog of exceptions has grown over time). The grammar's typed-rollback witness might end up in either category.

The Article's response is that the grammar's discipline differs in kind from procedural requirements in familiar legal-doctrinal frameworks. A typed-rollback witness is not a procedure; it is a construction that

either type-checks or does not. The witness cannot be satisfied by going through the motions of construction without producing a valid object. The substrate's runtime kernel evaluates the witness mechanically and rejects ill-typed inputs. A pro forma witness that did not type-check would fail admission at the construction step, not at a later audit step. The discipline is mechanical in a way that traditional procedural requirements are not.

This response has limits. The discipline is mechanical at the level of the substrate. It is not mechanical at the level of the substantive content of the witness. A witness for a file quarantine that specifies a constructive path back to the file's original state is type-checked at the substrate level; whether the constructive path is in fact a meaningful restoration of the prior state is a substantive question that the type system does not resolve. A pro forma witness for a more abstract action – restoring the geopolitical state of a country to its pre-occupation condition, for example – could in principle type-check while failing to provide any meaningful reversibility. The grammar provides a structural discipline at the wrapper level; it does not, by itself, prevent substantive mischief at the content level.

C. The doctrinal-fit objection

A third objection is that the grammar's vocabulary – typed witnesses, type-checking, refinement – is alien to the legal-doctrinal vocabulary in which delegated emergency authority is debated. A legal-academy reader may legitimately wonder whether the structural claim is a genuine addition to the doctrinal discussion or a semantic relabeling of points that the existing doctrinal vocabulary already captures. Sunset clauses, periodic reauthorization requirements, supermajority defaults for continuation, and post-hoc review by independent bodies are all features of the existing doctrinal toolkit. Does the typed-rollback discipline add anything that these existing features do not?

The Article's response is that the typed-rollback discipline adds something specific that the existing toolkit does not directly provide: the requirement is at the admission step rather than at the lapse step or the review step. A sunset clause operates at the lapse step: the authority lapses at a specified time unless extended. The actions taken under the authority are not, by virtue of the sunset, reversed when the authority lapses. A periodic reauthorization requirement operates at a review step: the authority is reviewed periodically and may be continued or terminated. The actions taken between reviews are not, by virtue of the review, reversed. A supermajority default for continuation operates at the extension step: the default is termination unless extended by supermajority. Again, the actions taken under the authority are not reversed by the operation of the default.

The typed-rollback discipline differs from all three. It operates at the admission step. An action that cannot exhibit a constructive path back to the prior state cannot be admitted. The discipline addresses the irreversibility of the action itself, not the lapse, the review, or the continuation of the authority. This is, the Article argues, a genuine addition to the doctrinal toolkit rather than a relabeling of an existing feature.

The argument is not knockdown. A legal-academy reader may reasonably observe that the doctrinal toolkit's mix of sunsets, reauthorizations, and supermajority defaults addresses the irreversibility problem indirectly, by making the authority itself less likely to persist long enough for irreversibility to matter. The typed-rollback discipline addresses the problem directly. Whether the direct address is preferable to the

indirect address is a substantive question on which the Article does not need to take a position; the Article needs only the narrower claim that the direct address is structurally distinct from the indirect ones and is not a relabeling.

D. The cross-disciplinary asymmetry

A final limit is the cross-disciplinary asymmetry of expertise between the Article's home discipline (formal methods, applied to programmable governance) and the Article's target audience (legal academy, particularly constitutional law). The author is not a lawyer. The Article relies on legal historiography, doctrinal accounts, and case-study literatures that a constitutional-law scholar would treat with greater facility than a non-lawyer can. The Article has tried, in each case study and in the doctrinal framing, to defer to the secondary literature where the Article's claim depends on a doctrinal characterization, and to flag uncertainty where the doctrinal record is contested.

The cross-disciplinary asymmetry is, on the author's view, a reason for the Article to be co-authored or extensively reviewed by a constitutional-law scholar before submission. The structural claim does not depend on getting any particular doctrinal claim exactly right; it depends on getting the structural pattern across the five case studies correct, which is a claim that survives reasonable variation in the doctrinal characterizations of any individual case. A reader who finds particular doctrinal claims in Part 3 unconvincing is invited to test the structural claim against the case studies that the reader finds most defensible. The grammar's claim is robust to the failure of any one or two case studies; the claim depends on the pattern across the five.

VIII. Conclusion

The Article has argued that delegated emergency authority across five doctrinally disparate regimes shares a structural feature whose absence explains a recurring failure mode. The feature is the requirement that an authority, at the moment of its exercise, exhibit a typed witness for the path back to the prior state. The feature is not currently a part of any of the five statutory or constitutional regimes examined. Its absence is, on the Article's framing, the structural explanation for the ratcheting pattern documented in the historical record of each regime.

The structural correction the Article proposes is a formal grammar drawn from a Lean-attestable substrate developed in a companion technical paper. The grammar requires four components for any bounded executive action: the substantive action, a time-to-live, a typed rollback witness, and a quorum predicate. The grammar makes the unconstructive case unconstructible: an action that cannot exhibit a typed rollback witness at the moment of admission cannot be admitted. The discipline operates at the construction step, not at a later review step.

The Article has not argued that any particular delegated emergency authority is desirable or undesirable on the merits. It has argued that, structurally, an emergency authority enacted without the four components is a defective grant of authority, and that the defect has substantive consequences that the historical record documents.

Three threads of further work are visible. The first is the engagement of constitutional-law scholarship

in detail. The Article's case studies are written by a non-lawyer working from secondary literature. A constitutional-law scholar would write each case study differently, and the variation would be informative. The second is the engagement of the structural correction with the doctrinal toolkit of sunset clauses, periodic reauthorization, and supermajority defaults. The Article has argued that the typed-rollback discipline is a genuine addition to that toolkit rather than a relabeling, but the comparative analysis of when the direct address is preferable to the indirect addresses is open. The third is the application of the grammar to delegated emergency authority in regimes the Article has not examined. Lincoln's habeas suspensions, Article 16 of the French Fifth Republic, the Italian decree-law tradition, the Indian President's Rule, and the Brazilian state of defense regime are all instances of the pattern. Each would test the grammar's robustness against doctrinal variation the Article has not engaged.

The Article's central contribution is the identification of the pattern, the naming of the structural correction, and the demonstration that the correction is buildable. The substantive content of any application of the grammar is a matter of democratic political determination that the grammar deliberately leaves to the political process. What the grammar offers is a structural skeleton within which that determination is made. The skeleton, on the Article's argument, is what the doctrinal record of delegated emergency authority has been missing.